



PERMANENT EMPLOYMENT CONTRACT

Fortune Technologies Limited

THIS AGREEMENT is made on the 25th day of SEPTEMBER 2026 between FORTUNE TECHNOLOGIES LIMITED of P. O. Box 13280-00100 GPO, Nairobi, Kenya (the “Company” or “Employer”) and the Employee identified below (the “Employee”).

Employee Name	Festus Kipyegon	ID/Passport No.	39011868
Job Title	Associate Consultant	Department/Function	Software Development
Reports To	Lead Consultant	Commencement Date	01/08/2026
Primary Duty Station	Nairobi	Gross Monthly Salary	KES 25,000
Probation	6 months	Notice after Confirmation	1 calendar month
Continuous Service Date (if different)		Other Contractual Benefits	

1.0. APPOINTMENT, DUTIES AND PROBATION

The Company appoints the Employee on a permanent and indefinite-term basis in the position stated above. The Employee accepts the appointment and shall diligently perform the duties in the Job Description and Key Performance Indicators attached to this Contract, together with other reasonable duties related to the Employee’s role, skills and level of responsibility.

The Employee shall serve a probation period of six (6) months from the Commencement Date. Where further assessment is reasonably required, probation may be extended by written agreement within the limits permitted by law. Successful completion shall be confirmed in writing. During probation, either party may terminate employment by giving at least seven (7) days’ notice or payment in lieu, subject to applicable law and fair process.

2.0. PLACE OF WORK AND DEPLOYMENT

The Employee’s primary duty station is stated above. The Company may reasonably require the Employee to work at another FTL office, client site, remotely, or at another location within Kenya according to operational requirements. A client assignment does not change the Employee’s employer from Fortune Technologies Limited unless expressly agreed in writing. The Employee shall observe lawful Company and applicable client-site rules while deployed.

3.0. REMUNERATION AND DEDUCTIONS

The Employee shall receive the gross consolidated monthly salary stated above, payable monthly in arrears. The consolidated salary is inclusive of the housing element/house allowance. The Company shall make statutory deductions and any other deduction authorised by the Employee or permitted by law.

Any commission, bonus, allowance, medical benefit, pension enhancement or other benefit not expressly recorded above shall be governed by the applicable written Company scheme or policy and, unless expressly guaranteed in writing, shall not constitute basic salary or an automatic entitlement. Salary reviews are not automatic and may take account of performance, market conditions and Company affordability.

4.0. WORKING HOURS AND ATTENDANCE

The Employee shall observe the working hours prescribed by the Company for the relevant role or duty station, subject to applicable law and the Employee Handbook. The Employee shall report punctually and maintain attendance records where required. Additional hours, overtime or time off in lieu shall be managed in accordance with law and Company policy and, where required, must be approved in advance.

5.0. LEAVE AND ABSENCE

The Employee is entitled to not less than twenty-one (21) working days of paid annual leave after every twelve consecutive months of service, together with sick leave, maternity leave, paternity leave, pre-adoptive leave and any other statutory leave in accordance with Kenyan law. Leave scheduling, applications, medical evidence, absence notification and related administration shall be governed by the Employee Handbook and applicable law.

6.0. PERFORMANCE, CONDUCT AND ETHICS

The Employee shall perform duties professionally and honestly, meet reasonable performance standards and KPIs, participate in performance reviews, protect the Company's reputation and comply with lawful instructions. The Employee shall avoid bribery, corruption, fraud and conflicts of interest and shall disclose any actual or potential conflict. Outside employment or business that competes with FTL, creates a conflict, misuses Company resources or materially interferes with the Employee's duties is prohibited unless appropriately disclosed and approved in writing.

7.0. CONFIDENTIALITY AND INTELLECTUAL PROPERTY

During and after employment, the Employee shall protect all non-public information relating to FTL, its employees, clients, suppliers and business partners, including customer records, pricing, proposals, payroll information, credentials, software, source code, configurations, databases, financial information and trade secrets. Such information shall only be used for authorised Company business and shall not be disclosed, copied or retained without authority, except where required by law.

To the extent permitted by law, software, source code, databases, configurations, documentation, reports, templates, designs, processes, training materials and other work product created by the Employee in the course of employment or specifically for Company business shall belong to Fortune Technologies Limited unless otherwise agreed in writing.

8.0. DATA PROTECTION, ICT AND COMPANY PROPERTY

The Employee shall handle personal data and use Company ICT resources in accordance with applicable law and FTL policies. Passwords, access credentials and Company or client information must be protected, and suspected data loss, unauthorised access or information-security incidents must be reported promptly.

All equipment, records, files, access cards, devices, software licences, credentials and other Company or client property issued to or held by the Employee shall be properly safeguarded and returned on request or upon termination. Detailed ICT, cybersecurity, privacy, acceptable-use and clearance requirements are contained in the Employee Handbook and relevant Company policies.

9.0. DISCIPLINE, GRIEVANCES AND EMPLOYEE HANDBOOK

The Employee shall familiarise themselves with and comply with the FTL Employee Handbook/HR Manual, Code of Conduct and other lawful policies issued by the Company from time to time. The Handbook regulates day-to-day employment matters including attendance, leave administration, dress and conduct, performance management,

disciplinary and grievance procedures, anti-bribery, ICT and cybersecurity, data protection, health and safety, use of Company property and client-site conduct.

The Company may reasonably revise non-contractual policies to reflect changes in law, technology and operational requirements. No policy shall reduce the Employee's statutory rights or materially vary an express contractual term without following applicable legal requirements.

Disciplinary matters, poor performance, incapacity and grievances shall be handled in accordance with applicable law and the procedures in the Employee Handbook. The Employee shall be informed of the appropriate person or office to whom disciplinary appeals and grievances should be addressed in accordance with the Handbook.

10.0. TERMINATION OF EMPLOYMENT

After confirmation, either party may terminate this Contract by giving one (1) calendar month's written notice or salary in lieu of notice, unless a longer period is expressly stated above. Termination by the Company shall be for a lawful reason and shall follow the process required by applicable law.

The Company may summarily dismiss the Employee for lawful cause, subject to the applicable legal process. Redundancy shall be handled in accordance with statutory requirements. On termination, the Employee shall complete the Company clearance process and return all Company and client property. Lawful final dues shall be processed subject to authorised deductions, and a Certificate of Service shall be issued as required by law.

11.0. GENERAL

This Contract, the employee-specific particulars above and the attached Job Description/KPIs constitute the principal contractual terms of employment. The Employee Handbook and Company policies govern procedures and day-to-day administration but do not override this Contract or applicable law. Any material contractual amendment shall be made in writing as required by law.

If any provision is invalid or unenforceable, the remaining provisions shall continue to apply. Nothing in this Contract reduces any minimum statutory right. This Contract shall be governed by the laws of Kenya.

12.0. ACCEPTANCE AND EXECUTION

I confirm that I have read and understood this Contract, that the terms have been explained to me where necessary, and that I accept employment with Fortune Technologies Limited on these terms. I further acknowledge my obligation to familiarize myself with and comply with the FTL Employee Handbook/HR Manual and applicable Company policies.

For Fortune Technologies Limited		Employee	
Name	Vince Abwao	Name	
Title	Lead Consultant	Signature	
Signature		Date	
Date	24/09/2026	Witness Name/Signature	

ATTACHMENT: APPROVED JOB DESCRIPTION & KEY PERFORMANCE INDICATORS

FORTUNE TECHNOLOGIES LIMITED

JOB DESCRIPTION – Associate Consultant

Job Title: Associate Consultant

Department: ICT / Software Solutions

Reports To: Lead Consultant

Duty Station: Nairobi, with deployment to client sites and remote assignments as required

Employment Type: Permanent

Job Level: Junior / Entry Level

1. Job Purpose

The Associate Consultant will support the design, development, implementation, maintenance and continuous improvement of Fortune Technologies Limited's software solutions.

The position combines **software development with application support, system implementation, end-user training and research into emerging technologies**. The employee will work closely with the Lead Consultant, other technical personnel, clients and system users to ensure that FTL solutions remain reliable, relevant, secure and responsive to changing business requirements.

A key component of the position will be continuous learning and research, particularly in areas such as **cloud technologies, artificial intelligence, automation, data analytics, systems integration and other emerging technologies** that may enhance FTL's existing and future products.

2. Key Duties and Responsibilities

A. Software Development & Maintenance

The Junior Developer will assist in analysing user requirements and translating them into functional software solutions; develop, test, debug and maintain application modules under appropriate technical supervision; maintain and enhance existing FTL applications; participate in database development and management; assist with APIs and integrations between FTL systems and third-party platforms; document source code and technical configurations; participate in testing and quality assurance; and support deployment of application updates, patches and new releases.

B. Application & User Support

The employee will provide first- and second-line support to users of FTL applications; investigate reported software problems and resolve or appropriately escalate them; maintain proper records of support incidents and resolutions; assist in system configuration, troubleshooting and routine maintenance; provide remote and on-site technical assistance; follow up outstanding client issues to closure; and identify recurring support problems that may require software enhancement rather than repeated manual intervention.

C. System Implementation

The Junior Developer will participate in new client implementations, including system installation/configuration, data preparation and migration, user acceptance testing and go-live support. The employee will assist in gathering

and documenting client requirements and work with the project team to ensure agreed configurations and customisations are properly implemented.

D. User Training

The employee will assist in preparing user guides, training materials and system documentation; conduct or support user training for FTL software products; demonstrate new functionality to customers and internal staff; provide post-training support; and identify areas where additional user education may reduce support requirements.

E. Research, Innovation & Emerging Technologies

A significant part of the position will involve researching technologies that may create new opportunities for FTL or improve existing solutions. The Junior Developer will:

- Research emerging developments in **AI, cloud computing, automation, analytics, cybersecurity, mobile applications, APIs and related technologies**.
- Evaluate development tools, frameworks and platforms that could improve FTL products or development processes.
- Develop small prototypes or proof-of-concept solutions where requested.
- Research opportunities for introducing AI and automation into FTL's HRIS, payroll and other business applications.
- Prepare short technical briefs or demonstrations for Management on promising technologies.
- Keep abreast of changes within the Microsoft ecosystem and other technologies relevant to FTL.
- Recommend practical improvements while considering cost, security, scalability and client requirements.

The intention is not research for its own sake: the employee should progressively learn to convert research into **practical business and product opportunities for FTL**.

3. Documentation & Knowledge Management

The Junior Developer will maintain appropriate technical documentation for work undertaken, including configuration notes, implementation records, troubleshooting procedures and development documentation. The employee will also contribute to FTL's internal technical knowledge base so that solutions to recurring problems are documented and reusable.

4. Client Service Responsibilities

Because FTL operates in a client-facing environment, the employee must communicate professionally with clients, understand that technical issues can have significant operational consequences, provide realistic feedback on resolution timelines, maintain confidentiality of client information and escalate matters that could materially affect client operations or relationships.

5. Minimum Qualifications

The preferred candidate should possess a Bachelor's degree or diploma in **Computer Science, Software Engineering, Information Technology, Business Information Technology or a related discipline**.

The candidate should demonstrate basic competence in software development and database concepts; familiarity with at least one modern programming language/framework; understanding of relational databases and SQL; basic

knowledge of web applications, APIs and systems integration; and an interest in cloud computing and Microsoft technologies.

Knowledge or exposure to **HR, payroll, ERP or other enterprise business systems** will be an added advantage.

For a genuinely junior position, I would **not insist on several years of experience**. A strong graduate with practical projects, internship experience or demonstrable software-development ability should qualify.

6. Key Competencies

The position requires analytical and problem-solving ability; willingness to learn; attention to detail; logical thinking; good communication and presentation skills; customer-service orientation; ability to document work clearly; teamwork; time management; professional integrity; and the ability to research unfamiliar technologies independently.

The employee must also be comfortable interacting with **non-technical users** and explaining technical matters in simple language.

7. Key Performance Indicators (KPIs)

The role will be assessed across five broad areas rather than judging the Junior Developer purely on the volume of code produced.

Performance Area	Indicative Weight
Software Development, Testing & Quality	35%
Application Support & Issue Resolution	25%
Implementation & User Training	15%
Research, Innovation & Continuous Improvement	15%
Documentation, Client Service & Professional Conduct	10%
Total	100%

Specific measures can include timely completion of assigned development tasks; quality and reliability of code; number and severity of defects; turnaround time on support tickets; successful closure of user issues; implementation tasks completed on schedule; quality of user training; accuracy of technical documentation; and useful research/prototypes presented to Management.

For the **15% innovation component**, I would require at least **one structured research/innovation brief or practical demonstration each quarter**. This creates a deliberate innovation culture without distracting the employee from their core development and support responsibilities.

8. Authority and Escalation

As this is a junior position, the employee may resolve routine technical and support matters within assigned authority but should escalate significant system failures, cybersecurity incidents, data-loss risks, major client complaints, material scope changes and decisions involving significant cost or contractual commitments to the **Lead Consultant**.

9. Confidentiality and Intellectual Property

The employee will have access to source code, databases, client information, credentials and proprietary business information. All such information must be handled strictly in accordance with the FTL Employment Contract, Employee Handbook, Data Protection requirements and ICT/security policies.

Software, documentation, configurations, research outputs and other intellectual property developed in the course of employment will be governed by the intellectual-property provisions of the FTL Employment Contract.

10. Job Description Acknowledgement

This Job Description describes the principal responsibilities of the position but is not exhaustive. The employee may be assigned other reasonable duties consistent with their skills, position and FTL's operational requirements.

Employee Name: _____

Signature: _____

Date: _____

For Fortune Technologies Limited



Vince Abwao
Lead Consultant

Date: ____25/09/2026__

